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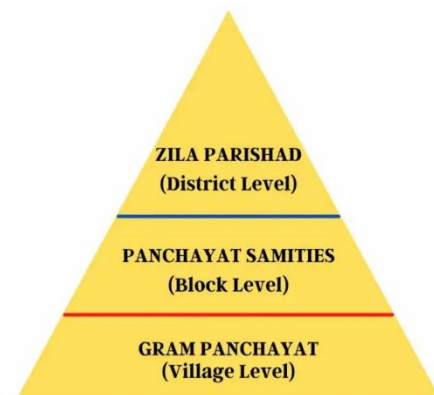
Study Notes

Panchayati Raj



Introduction

- Panchayati Raj Institution (PRI) is a system of rural **local self-government** in India.
- Local Self Government is the management of local affairs by such local bodies who have been elected by the local people.
- However, it was only in 1992 that it was officially established by the Indian Constitution as the third level of India's federal democracy through the **73rd Amendment Act of 1992**.
- The Panchayati Raj Institution (PRI) consists of three levels:**
 - Gram Panchayat at the village level
 - Block Panchayat or Panchayat Samiti at the intermediate level
 - Zilla Panchayat at the district level



Panchayati Raj in British India

- Panchayati Raj Institutions found their modern form mostly in British Raj when in **1870 Mayo resolution** was brought into.
- Mayo resolution was followed up by democratic framework of these institutions through **Lord Rippon's laws in 1882**.
- Mahatma Gandhi was a fierce proponent of the idea of Panchayati Raj whereas, Dr. B. R. Ambedkar opposed the idea of Panchayati raj. He believed that the villages represented regressive India, a source of oppression. He argued against panchayats as he was apprehensive about the continuation of caste hegemony.**

Panchayati Raj in Independent India

Name of committee	Objective	Year	Recommendation
Balwant Rai Mehta Committee	To examine the Community Development Programme, 1952	1957	Three tier system at village, block and district level Direct election of village level panchayat (Started from Nagaur district on October 2, 1959 Rajasthan)
Ashok Mehta Committee	To revive and strengthen the declining Panchayati Raj system in the country	1977-78	Two tier system of panchayat- Zilla Parishad and Mandal Panchayat . Regular social audit Representation of political parties at all level of panchayat elections

			Provisions for regular election Reservation to SCs/STs in panchayats and a minister for Panchayati raj in state council of ministers.
G V K Rao Committee	To strengthen Panchayati Raj institutions	1985	Making the “district” as the basic unit of planning and also holding regular elections
LM Singhvi	Constitutional status of Panchayati Raj	1986	Constitutional status of Panchayati Raj institutions and it also suggested for constitutional provisions to ensure regular, free and fair elections to the Panchayati Raj Bodies.

Evolution of Panchayati Raj:

Balwant Rai Mehta Committee (1957):

- **Balwant Rai Mehta Committee (1957)** was the first committee that recommended the establishment of the scheme of ‘**democratic decentralization**’ which ultimately came to be known as Panchayati Raj.
- Some of the major recommendations made by the committee are:
 - Establishment of a **three-tier Panchayati raj system**
 - The **village panchayats** should be constituted with directly elected representatives
 - **Planning and development** should be entrusted to them
 - **Adequate resources** should be transferred to these bodies
 - Proper system should be put place in to realize the devolution of powers
- **Rajasthan** was the first state to establish Panchayati Rajin 1959 in Nagaur district.
- Most of the states created the system in their states. However, there were wide-ranging differences between them.
- Some states had adopted two-tier system, others three-tier and four-tier.

Ashok Mehta Committee (1977):

- The Ashok Mehta Committee was set up in 1977 after the alarming decline of the Panchayati Raj System in India. Their objective was to help in its revival.
- Their key recommendations are as follows:
 - The most significant recommendation was to transform the three-tier system into a **two-tier** one, with the Zila Parishad on the district level and the Mandal Panchayat representing a group of villages.
 - **The Zila Parishad shall serve as the primary level of supervision** after the state government. It will also be responsible for the executive function and the planning at the district level.

- These two institutions, the Zila Parishad and the Mandal Panchayat, shall be responsible for their finances and have taxation powers.

GVK Rao committee (1985):

- In 1985, the G.V.K. Rao Committee was appointed by the **Planning Commission** of India. The development envisaged from the local level bureaucratization was not at par with the result.
- Some key recommendations by this Panchayati Raj committee are as follows:
 - The Zila Parishad was deemed the most significant body of the system, essential to the decentralization that was originally planned.
 - Zila Parishad was to head the management of all programs related to the development of the district.
 - The lower levels of the Panchayati Raj were responsible for very particular aspects of the said development programs' planning and implementation.
 - This committee also suggested the creation of a post, namely District Development Commissioner, who shall also serve as the Chief Executive Officer of the Zila Parishad.
 - Elections to PRI should be conducted regularly.

LM Singhvi committee (1986):

- It was appointed by the **Rajiv Gandhi government**.
- Some of the recommendations made by this committee include:
 - It should be constitutionally recognized
 - **Nyaya panchayats** should be established for a cluster of villages
 - Placed emphasis on Gram Sabha as the center for democratic decentralization
 - Village panchayats should have more resources
 - Judicial tribunals should be established to adjudicate judicial matters related to PRI

STRUCTURE OF PANCHAYATI RAJ INSTITUTIONS

After the 73rd Constitutional Amendment, We have in every state a three-tier Panchayati Raj structure at the Village, Block, and District levels.

- **Gram Panchayat (GP)**
 - Throughout the country, Village Panchayats are the basic unit in the structure of Panchayati Raj. As Gram Panchayats have been in existence in the country since Ancient times, almost all states have recognized their importance.
 - It is also felt that as Panchayats are closer to the Community, they will ensure more direct Participation of the people in the Implementation of development programs.

- All the seats in a GP are filled by persons Chosen by direct elections from the Territorial constituencies in the Panchayat Area.
- Seats are reserved for scheduled castes And tribes as well as women. The size of the Gram Panchayat fluctuates generally from State to state. In states like West Bengal, Kerala, and so on, a Gram Panchayat Averaged about 20000 persons, while in Many different states, it was about 3000.
- **Panchayat Samiti (PS)**
 - Panchayat Samiti is the next important body In the Panchayati Raj structure. In almost all The states, Samitis has been given an Important role.
 - The voters in the area Directly elect their representatives in a Samiti. The state may provide a Representation of the chairperson of the Village Panchayat, MPs, MLAs, and MLCs. Thus, the structure of Panchayat Samitis varies from state to state. However, seats are reserved for scheduled castes, tribes, and women.
- **Zilla Parishad (ZP)**
 - Zilla Parishad has been established as the third tier at the district level in all the states. The structural pattern of Zilla Parishad is similar to that of Panchayat Samiti. Voters directly elect their delegates from their constituencies.
 - These seats are reserved for scheduled castes, tribes, and women.
 - The State Legislature may provide by law representation of the Chairpersons of the Panchayat Samitis, MPs, MLAs, and MLCs.
- **Gram Sabha**
 - An important feature of the structure of panchayat at the village level is the Gram Sabha. It is the highest village assembly and sole of PRIs, having legal status under the law.
 - It consists of all the adult persons registered as voters in the electoral roll of a village comprised within the area of Gram Panchayat. In West Bengal, Gram Sabha is called as the Gram Sansad.
 - The Gram Sabha is not a level of the Panchayati Raj structure. It does not have any official capacity and works as a suggesting body as it were.
 - Gram Sabhas usually meet 2 to 4 times each year; however, they may meet when important. In some states, the dates of these assemblies are changed (Madhya Pradesh, Gujarat, etc.) while in other states the dates are settled by the Gram Panchayat.
 - The topics to be discussed at the assembly can be far-reaching but should include important inspiration. Annual Action Plan and Budget, Annual Accounts and Annual Report of the GP, choice of beneficiaries for various social administration programs (Pradhan Mantri Awas Yojana, various Pension Schemes to name a few),

THE 73RD CONSTITUTION AMENDMENT ACT, 1992

- Under the leadership of P.V. Narasimha Rao, who served as Prime Minister at the Time, the Congress government presented a New bill on the Panchayati Raj in September 1991. It came to be known as the 73rd Amendment Act of 1992 and came into Effect on April 24, 1993.
- Through this act, The Panchayati Raj system came under the Equitable part of the Constitution, forcing The government to adopt the system.
- The 73rd Amendment Act provides for more Demoralization, empowerment of Disadvantaged groups, and betterment of the Functioning of the panchayat in the country.
- The 73rd Amendment provided a framework and Guidelines to all states for formulating their policies on the devolution of panchayat .

▪ **Significance of the Act**

- The Act added 'The Panchayats' Part IX To the Constitution, and added the Eleventh Schedule, which consists of the 29 functional items on panchayats
- Part IX of the Constitution contains Article 243A to Article 243 O.
- The Amendment Act enacts Article 40 Of the Constitution, (Directive Principles Of State Policy), which mandates the State to organize the village panchayats And give them powers and authority to Function as self-governments.

▪ **Salient Features of the Act**

1. Gram Sabha:

- The Gram Sabha is the Primary body of the Panchayati Raj System. It is a village assembly Consisting of all registered voters within The area of the panchayat.
- It shall Exercise such powers and perform such Functions as may be prescribed by the State legislature.

2. Three-tier system:

- This Act provides for the establishment of the three-tier system of Panchayati Raj in the states (Village, Intermediate, and District level).
- States with a population of less than 20 lakhs cannot constitute the intermediate level.

3. Election of members and Chairperson:

- Members at all levels of the Panchayati Raj are directly elected and the Chairperson at intermediate and district levels is indirectly elected from among the elected members.
- At the village level, the state government elects the Chairperson. The Chairperson of the Panchayat and other members of the panchayat, whether or not directly elected from the regional constituencies of the panchayat area, have the right to vote in the panchayat meeting.

4. Reservation of seats:

- **For SC and ST:** Reservation to be provided at all three tiers by their population percentage.
- **For backward classes:** The state legislatures are also given the provision to decide on the reservation of seats in any level of panchayat or office of chairperson in favor of backward classes.
- **For women:** Not less than one-third of the total number of seats reserved for women, and not less than one-third of the total number of offices for chairpersons at all levels of the panchayat are reserved for women.

5. Duration of Panchayat:

- The Act provides for five-year term tenure at all levels of the panchayat. However, the panchayat can be dissolved before the expiry of its term.
- However, fresh elections for the formation of the new panchayat will be completed before the expiry of its five-year duration

6. State Election Commission:

- The commission is responsible for the preparation of voter lists and supervision, direction, and control of the panchayat elections.
- The state legislature may make Provisions for all matters relating to Elections to the panchayats.

7. Powers and Functions:

- The state Legislature may confer necessary powers And authority on the panchayats to Enable them to function as institutions of Self-government.
- Such schemes may Contain provisions related to the Functioning of Gram Panchayats.
- The Implementation of schemes for Economic development and social Justice may be entrusted to them, Including those about the 29 matters Listed in the Eleventh Schedule.

8. Finances:

The State Legislature may-

- Authorizes panchayats to levy, collect, And appropriate duties, taxes, tolls, and Fees.
- Assign to a panchayat taxes, duties, Tolls, and fees levied and collected by The state government.
- Arrange for disbursement of grants to The panchayats from the consolidated Fund of the state.
- Provide for the formation of funds for Depositing all money of the panchayats.

9. Finance Commission:

- The State Finance Commission reviews the Financial condition of the panchayats And makes recommendations for the Necessary steps to be taken to Supplement resources to the panchayat.

10. Audit of Accounts:

- The state legislature May make provision for the maintenance And audit of panchayat accounts.

11. Application to Union Territories:

- The President may direct the provisions of The Act to apply to any union territory Subject to such exceptions and Modifications as he may specify.

12. Exempted states and areas:

The Act Does not apply to the states of Meghalaya, Mizoram, Nagaland, and Certain other areas. These areas include-

- The scheduled areas and the tribal areas In the states.
- The hilly areas of Manipur, for which a Zila Parishad exists
- Darjeeling district (West Bengal), for Which Darjeeling Gorkha Hill Council Exists. However Parliament may extend this Section to these areas subject to the Exceptions and modifications it specifies. Thus, the PESA Act was enacted.

13. Continuance of existing law:

- All the State laws relating to panchayats shall Remain in force until the expiry of one Year from the commencement of this Act.

14. Bar to interference by courts:

- The Act Bars the courts from interfering in the Electoral matters of panchayats.

PESA Act of 1996

- Panchayats (Extension to Scheduled Areas) Act, 1996 is a law enacted by Government of India to cover the “**Scheduled Areas**”, which are not covered in the **73rd Constitutional amendment**.
- This particular act extends the **provisions of Part IX to the Scheduled Areas** of the country constitution relating to the Panchayats are not applicable **to Fifth Schedule areas**.
- PESA brought powers further down to the Gram Sabha level.
- The Gram Sabha in the Panchayat Act were entrusted with wide ranging powers starting from consultation on land acquisition to that of ownership over minor forest produces and leasing of minor minerals.

- 10 States having fifth scheduled area are- Rajasthan, Madhya Pradesh, Gujarat, Jharkhand, Chhattisgarh, Himachal Pradesh, Maharashtra, Odisha, Andhra Pradesh & Telangana.

Objectives of the PESA Act:

- To include the scheduled areas in the application of Part IX's provisions.
- To provide the indigenous populace self-government.
- To establish democratic participation in village governance.
- To develop participatory governance in accordance with established procedures.
- To protect and preserve indigenous populations' traditions and customs.
- Giving panchayats authority in accordance with tribal needs.
- To stop panchayats at higher levels from absorbing the authority and powers of panchayats at lower levels.

Salient features of the PESA Act 1996

- **Powers exclusive to Gram Sabha-** Every village shall have its own Gram Sabha.
- **Gram Sabha is "competent"** to safeguard and preserve the-
 - (a) traditions and customs of the people, and their cultural identity,
 - (b) community resources, and
 - (c) customary mode of dispute resolution.
- **Gram Sabha has mandatory executive functions to-**
 - Approve plans, programmes and projects for social and economic development.
 - Identify persons as beneficiaries under the poverty alleviation and other programmes.
 - Issue a certificate of utilization of funds by the Panchayat for the plans; programmes and projects
- **Powers exclusive to Gram Sabha/Panchayat at appropriate level-**
 - Right to mandatory consultation in land acquisition, resettlement and rehabilitation of displaced persons.
 - Panchayat at an appropriate level is entrusted with planning and management of minor water bodies.
 - Mandatory recommendations by Gram Sabha or Panchayat at appropriate level prior to grant of prospecting licenses, mining leases, concessions for minor minerals.
- **Powers endowed to Gram Sabha and Panchayat at appropriate level to-**
 - Regulate sale/consumption of intoxicants.
 - Ownership of minor forest produce.
 - Prevent land alienation and restore alienated land.
 - Manage village markets.
 - Control over money lending to STs.
 - Control over institutions and functionaries in social sector, local plans including tribal sub plans and resources

Special Category National Panchayat Awards : These awards include

- the Climate Action Special Panchayat Award (CASPA),
- Atma Nirbhar Panchayat Special Award (ANPSA), and
- Panchayat Kshamta Nirman Sarvottam Sansthan Puraskar (PKNSSP).

The awards aim to recognize Gram Panchayats and institutions that have demonstrated exemplary performance in areas such as climate resilience, fiscal self-reliance, and capacity building.